

LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV366905	Lance Dutcher vs Google LLC d/b/a YouTube et al (Class Action)	Motion: Preliminary Approval is GRANTED Click on line 1 for tentative ruling
LINE 2	20CV367408	Saldivar v. Stanford Federal Credit Union (Class Action)	Motion: Preliminary Approval is GRANTED Click on line 2 for tentative ruling
LINE 3	22CV407249	Treespring Investments, LP v. Rautner, et al.	Motion: Compel Discovery is GRANTED in part and DENIED in part Click on line 3 for tentative ruling
LINE 4	23CV417746	Eduar Mencias Turcios vs Signature Concrete LLC. (PAGA)	Hearing: Motion is Withdrawn, Off Calendar
LINE 5	23CV425509	Grey v. Pacific Coast Logistix (Class Action)	Motion: Preliminary Approval is GRANTED Click on line 5 for tentative ruling
LINE 6	24CV429231	Shadkam v. 3566 Stevens Creek Holdings of California, LLC, et al. (Class Action)	Hearing: Motion for Approval is GRANTED Click on line 6 for tentative ruling
LINE 7	25CV471880	Jose Ceja Meraz vs Schwager Davis, Inc.	Motion: Compel Arbitration is GRANTED Click on line 7 for tentative ruling
LINE 8			
LINE 9			
LINE 10			
LINE 11			
LINE 12			
LINE 13			

Calendar Line 1

Case Name: *Lance Dutcher v. Google LLC dba Youtube et al.*

Case No.: 20CV366905

This is a putative class action. Plaintiff Lance Dutcher (“Plaintiff”) alleges that Defendants Google LLC d/b/a YouTube, and YouTube, LLC (collectively, “Defendants”) engaged in an illegal “automatic renewal” scheme with respect to a subscription plan for YouTube-branded products and services that are available exclusively to consumers who enroll in Defendants’ auto-renewal membership programs.

Before the Court is Plaintiffs’ motion for preliminary approval of settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

I. BACKGROUND

Plaintiffs initiated this action on June 5, 2020, asserting the following causes of action: 1) unfair competition; 2) conversion; 3) false advertising; 4) violation of California’s Consumers Legal Remedies Act; 5) unjust enrichment/restitution; 6) negligent misrepresentation; and 7) fraud.

Plaintiff now seeks an order: preliminarily approving the parties’ class action settlement; conditionally certifying the Class for settlement purposes; ordering the proposed Class notice be sent to the settlement Class; appointing Digital Settlement, LLC (“Digital”) as the settlement administrator; appointing Plaintiff as Class representatives; appointing Bursor & Fisher, P.A. as Class counsel; staying all proceedings until a final decision on approval of the Settlement; and scheduling a final approval hearing.

II. LEGAL STANDARDS FOR SETTLEMENT APPROVAL

A. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.

(*Wershba, supra*, 91 Cal.App.4th at pp. 244–245, internal citations and quotations omitted.)